

Smt. Shakuntala Yadav v. Madhyanchal Vidhyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Single Judge · 3 January 2013 · Writ-C No. 68471 of 2012; Civil Misc. Stay Application No. 382690 of 2012 · **Interim stay on non-cash/BG security; listed for counter.**

HEADNOTE

Pending a writ against dismissal of an appeal from a provisional assessment—where the consumer alleged Regulation 6.8 natural-justice breach and the appellate authority had also taken a later final assessment into account—the High Court directed that if the licensee prepares and serves final dues in terms of the appellate order, the consumer shall furnish security other than cash or bank guarantee within two weeks, to abide the writ, and listed the matter for counter-affidavit.

FACTUAL SUMMARY

The consumers appealed a provisional assessment by Madhyanchal Vidhyut Vitran Nigam Ltd. The appeal was dismissed after a final assessment had been made, which the appellate authority also took into account. They alleged violation of natural justice under Regulation 6.8 of the U.P. Electricity Supply Code, 2005. The appellate order directed adjustment of deposits from January 2011 to January 2012 and of sums paid against the provisional assessment before determining the balance due. The stay application and writ came up before a single Judge.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim stay and listing

HOLDING

The Court did not decide the Regulation 6.8 challenge. Pending the writ, if the licensee prepares and serves final dues in accordance with the appellate order, the consumer shall furnish security other than cash or bank guarantee within two weeks to the satisfaction of respondent no. 2, such security to abide the result of the petition; four weeks granted for counter-affidavit, list thereafter. ¶ 1-2

PRINCIPLE TAGS

opportunity-before-final-assessment Pending a writ against dismissal of an appeal from a provisional assessment—where the consumer alleged Regulation 6.8 natural-justice breach and the appellate authority had also taken a later final assessment into account—the High Court directed that if the licensee prepares and serves final dues in terms of the... ¶ 1-2

procedural-listing-no-construction Pending a writ against dismissal of an appeal from a provisional assessment—where the consumer alleged Regulation 6.8 natural-justice breach and the appellate authority had also taken a later final assessment into account—the High Court directed that if the licensee prepares and serves final dues in terms of the... ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER REGULATION 6.8 NATURAL-JUSTICE PROCEDURE WAS VIOLATED IN THE ASSESSMENT AND APPEAL

Only recorded as the petitioners' plea; no finding. ¶ 1

NOT DECIDED — MERITS OF THE APPELLATE DISMISSAL AND OF THE PROVISIONAL AND FINAL ASSESSMENTS

¶ 1-2

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.